

injunction.

**Plaintiff Fails to Establish that Attachment Requirements Have Been Satisfied**

“The remedies provided by the Attachment Law are not exclusive; in some situations, an injunction may be a more satisfactory remedy. Accordingly, [Code of Civil Procedure section] 482.020 states that nothing in the Attachment Law precludes the granting of injunctive relief; i.e., the court should not refuse the equitable remedy of injunction on the ground that the attachment statute provides an adequate remedy at law. However, an injunction may not be used to obtain what is actually an attachment without meeting the requirements for an attachment.” (6 Witkin, Cal. Proc. (5th ed. 2008), § 49, citing *Doyka v. Superior Court* (1991) 233 Cal.App.3d 1134, 1136 (Doyka).)

In *Doyka*, the trial court enjoined the defendant from ““secreting, using, distributing, transferring, or otherwise disposing of all or any portion of funds in the sum of One Hundred Twenty-five Thousand and no/100 (\$125,000.00), whether on deposit in The Pacific Bank, or in any other lending or financial institution ... for any purpose relating to the construction, renovation, and/or sale or other disposition of all or any portion of the real property and improvements located at 2572-2588 Pine Street, San Francisco, California, or for any other use or purpose whatsoever.”” (*Doyka, supra*, 233 Cal.App.3d at p. 1136.) The Court of Appeal reversed the order, which “effectively impose[d] a prejudgment attachment upon all of Doyka's liquid assets without satisfying the statutory requirements for an attachment.” (*Ibid.*)

Plaintiff could only obtain what amounted to an attachment through a preliminary injunction if all the statutory requirements of attachment were satisfied. Plaintiff does not claim to have satisfied the requirements of the statute.

**Disposition**

Plaintiff’s request for preliminary injunction is **denied**. The June 23, 2026 TRO is **dissolved**. Nothing in this order precludes the parties from stipulating to a narrower or alternative arrangement, including with respect to the disposition or preservation of proceeds from any sale of the Kahrs Avenue property. Because the Court denies the request for injunction on the merits, it does not reach Elaine Lenore's opposition regarding her community property interest in the Kahrs Avenue property or the adequacy of notice to her.

**3. 12:00 PM CASE NUMBER: MSC21-00653**

**CASE NAME: WANG BROTHERS VS EAST BAY MUD**

**COURT TRIAL HEARING**

**FILED BY:**

**\*TENTATIVE RULING:\***

This is set for ongoing court trial at 1:30.

4. 9:00 AM CASE NUMBER: C22-00895

CASE NAME: I.B. VS. COUNTY OF CONTRA COSTA

\*HEARING ON MOTION IN RE: JUDGMENT ON THE PLEADINGS

FILED BY: COUNTY OF CONTRA COSTA

**\*TENTATIVE RULING:\***

Before the Court is a motion for judgment on the pleadings ("Motion") filed by defendant County of Contra Costa ("Defendant"). The Motion argues that the sole cause of action, negligence, alleged against Defendant by plaintiff I.B. ("Plaintiff") fails to state facts sufficient to constitute a cause of action.

For the reasons discussed below, the Court's ruling is to **DENY** Defendant's Motion, without prejudice.

**Meet and Confer**

The meet and confer requirement has been satisfied. (Morgan W. Hansen Decl., ¶¶ 2-4; Code of Civ. Proc., § 439, subd. (a)(3)(A).)

**Legal Standard for Motion for Judgment on the Pleadings**

Code of Civil Procedure section 438 permits a defendant to move for judgment on the pleadings on the ground that the complaint does not state facts sufficient to constitute a cause of action against the defendant. (Code Civ. Proc., §§ 438, subd. (b)(1), 438, subd. (c)(1)(B)(ii), and 438, subd. (c)(2)(A); *Stoops v. Abbassi* (2002) 100 Cal.App.4th 644, 650 ["Such motion may be made on the same ground as those supporting a general demurrer, i.e., that the pleading at issue fails to state facts sufficient to constitute a legally cognizable claim or defense. [Citation omitted.]"]; *See also Connerly v. Schwarzenegger* (2007) 146 Cal.App.4th 739, 746 ["'A motion for judgment on the pleadings is the equivalent of a demurrer made after the pleadings are in.' [Citation omitted.]"].) A motion for judgment on the pleadings may also be made to the complaint in its entirety. (Code Civ. Proc., § 438, subd. (c)(2)(A).)

The legal standards for determination of a motion for judgment on the pleadings are similar to the standards for determination of a demurrer. (*Eckler v. Neutrogena Corp.* (2015) 238 Cal.App.4th 433, 439.) The basis for judgment on the pleadings "shall appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice." (Code Civ. Proc. § 438, subd. (d).) As in the case of a demurrer, the Court accepts all factual allegations of the complaint and "gives them a liberal construction." (*Gerawan Farming, Inc. v. Lyon* (2000) 24 Cal.4th 468, 515-516.)

Consistent with the rules for determination of a demurrer, a motion for judgment on the pleadings must fully dispose of the challenged cause of action. (*Daniels v. Select Portfolio Servicing, Inc.* (2016) 246 Cal.App.4th 1150, 1167, overruled in part on other grounds by *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, 919; *PH II, Inc. v. Superior Court* (1995) 33 Cal.App.4th 1680, 1682-1683.)